

1 **SENATE FLOOR VERSION**

2 April 10, 2025

3 ENGROSSED HOUSE

4 BILL NO. 1122

By: Bashore, Luttrell, and Deck
of the House

5 and

6 Weaver of the Senate

7
8
9 An Act relating to amusements and sports; amending 3A
10 O.S. 2021, Sections 602, 604.2, 605, 606, 616, and
11 624, which relate to the Oklahoma State Athletic
12 Commission Act; modifying definitions; directing the
13 Oklahoma State Athletic Commission to assume
14 jurisdiction over certain licensing; directing
15 Commission to halt certain events; directing
16 Commission to seek penalties in certain
17 circumstances; modifying terms relating to employment
18 by the Commission; directing the Commission to cease
19 certain support; providing that the Commission be a
separate and distinct agency; requiring the return of
Commission property; providing certain protections;
directing that certain expenses be paid by
Commission; prohibiting promotion or participation in
certain events; modifying terms related to the
Oklahoma State Athletic Commission Revolving Fund;
removing certain exceptions that relate to testing
for the human immunodeficiency virus, the hepatitis B
virus, or the hepatitis C virus before the issuing of
a license; and providing an effective date.

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22 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

23 SECTION 1. AMENDATORY 3A O.S. 2021, Section 602, is
24 amended to read as follows:

1 Section 602. A. As used in the Oklahoma State Athletic
2 Commission Act:

3 1. "Administrator" means the administrator of the Oklahoma
4 State Athletic Commission;

5 2. "Amateur combative sports event" means a combative sports
6 event in which the participants have never been licensed as
7 professionals in any combative sport;

8 3. "Amateur combative sports practitioner" means a person who
9 has never received or competed for any purse or other article either
10 for the expenses of training therefor or for participating in any
11 combative sports contest or exhibition which exceeds in monies or
12 other things of value a sum to be determined by the Oklahoma State
13 Athletic Commission;

14 4. "Amateur mixed martial artist" means a person eighteen (18)
15 years of age or older who has never received or competed for any
16 purse or other article either for the expenses of training therefor
17 or for participating in any combative sport contest or professional
18 exhibition which exceeds in monies or other things of value a sum to
19 be determined by the Oklahoma State Athletic Commission;

20 5. "Amateur mixed martial arts" means any form of competitive
21 pugilistic contest in which the participants have never been
22 licensed as professionals in any combative sport and blows are
23 delivered with any part of the hands, feet, or knees and multiple
24 combative disciplines are used including grappling. Such contests

1 take place in a rope-enclosed ring or fenced enclosed cage and are
2 fought in timed rounds;

3 6. "Applicant" means any person, individual, club, association,
4 corporation, partnership or trust which submits to the Oklahoma
5 State Athletic Commission an application for a license or permit
6 pursuant to the Oklahoma State Athletic Commission Act;

7 7. "Booking agent" means independent contractors who act as
8 bookers, agents, agencies and representatives who secure engagements
9 and contracts for combative sports participants;

10 8. "Boxing" means any form of competitive pugilism or unarmed
11 combat in which a blow is usually struck which may reasonably be
12 expected to inflict injury, including, but not limited to, boxing,
13 wrestling, mixed martial arts, and kickboxing, but shall not include
14 the martial arts as defined by the provisions of this section;

15 9. "Broadcast" means any audio or visual transmission sent by
16 any means of signal within this state, whether live or taped or time
17 delayed, and includes any replays thereof. "Broadcast" shall not
18 include any audio or visual transmission sent by any means of signal
19 of any professional boxing event conducted outside this state;

20 10. "Cable system operator" means any person who makes
21 available or provides customers a closed-circuit telecast which is
22 pay-per-view, including any person who does so as a direct broadcast
23 satellite provider or other multichannel video service provider;

1 11. "Closed-circuit telecast of professional combative sporting
2 events" means telecast rights, including television, cable
3 television, or pay-per-view telecasts, acquired by paying a
4 licensing fee or by paying a contractual price by a business or
5 individual, including, but not limited to, arenas, entertainment or
6 meeting centers, restaurants, bars, taverns, hotels, motels, clubs,
7 and organizations, which offers the viewing of the event to the
8 public or to private residences. Such events shall include local
9 and state professional combative sports contests and professional
10 exhibitions as defined in this section. "Closed-circuit telecast"
11 means any such telecast of a professional combative sporting event
12 as described herein which is not intended to be available for
13 viewing without the payment of a fee, collected for or based upon
14 each event viewed, for the privilege of viewing the telecast, and
15 includes pay-per-view;

16 12. "Club" means an incorporated or unincorporated association
17 or body of individuals voluntarily united and acting together for
18 some common or special purpose;

19 13. "Combative sports" means any form of competitive pugilism
20 or unarmed combat in which a blow is usually struck which may
21 reasonably be expected to inflict injury, including but not limited
22 to boxing, wrestling, mixed martial arts, and kickboxing, but shall
23 not include the martial arts (singular) as defined by the provisions
24 of this section;

1 14. "Combative sports practitioner" means a person who competes
2 or spars in a combative sports event ~~and includes~~, including, but
3 not limited to, boxers, kickboxers, mixed martial artists and
4 wrestlers;

5 15. "Commission" means the Oklahoma State Athletic Commission;

6 16. "Contest" means a combative sports event in which it is
7 reasonable to anticipate that the participants strive earnestly in
8 good faith to win;

9 17. "Corner person" means, but shall not be limited to, a
10 trainer, a second, or any other individual who attends the
11 participant during a match;

12 18. "Event" means a combative sports contest or exhibition
13 including but not limited to a match, bout, contest, show or
14 tournament;

15 19. "Exhibition" means a combative sports event in which the
16 participants show or display their skill by sparring without
17 necessarily striving to win;

18 20. "Judge" means an individual other than a referee who shall
19 have a vote in determining the winner of any contest;

20 21. "Kickboxing" means any form of competitive pugilistic
21 professional or amateur contest or exhibition in which blows are
22 delivered with the hand and any part of the foot. Such contests or
23 exhibitions take place in a rope-enclosed ring and are fought in
24 timed rounds;

1 22. "License" means a certificate issued by the Commission to
2 participants of sanctioned professional or amateur combative sports
3 contests, ~~professional or exhibitions, and amateur mixed martial~~
4 ~~arts contests~~ and is a mandatory requirement for participation in
5 such events;

6 23. "Manager" means an individual who controls or administers
7 the affairs of any professional combative sports participant,
8 including acting as a booking agent. "Manager" shall include the
9 representative of a manager as defined by the Commission;

10 24. "Martial arts" means any form of karate, kung fu, tae kwon-
11 do, or any other form of martial or self-defense art;

12 25. "Matchmaker" means an individual who brings together
13 professional combative sports participants or arranges professional
14 combative sports contests or professional exhibitions;

15 26. "Participant" means an individual who takes part in a
16 combative sports event;

17 27. "Pay-per-view telecasts of professional combative sports
18 events" means telecasts offered by cable television companies to
19 subscribers at a cost in addition to the monthly cable television
20 subscription rate. Such events shall include local and state
21 professional combative sports contests and professional exhibitions
22 as defined in this section;

23 28. "Person" means any individual, firm, partnership, joint
24 venture, limited liability company, club, association, corporation,

1 trust, ~~or other entity~~ any other group or combination acting in
2 concert, or any assignee, agent, employee, director, officer, or any
3 other representative of such person;

4 29. "Physician" means an individual licensed under the laws of
5 this state to engage in the general practice of medicine or
6 osteopathic medicine;

7 30. "Professional combative sports practitioner" means an
8 individual eighteen (18) years of age or older who competes for
9 money, prizes, or purses, or who teaches, instructs, or assists in
10 the practice of combative sports or sparring as a means of obtaining
11 pecuniary gain;

12 31. "Professional combative sports event" means a combative
13 sports event in which the participants are paid a purse;

14 32. "Professional mixed martial arts" means any form of
15 competitive pugilistic contest in which the participants are paid a
16 purse and blows are delivered with any part of the hands, feet,
17 elbows, or knees and multiple combative disciplines are used to
18 include grappling. Such contests take place in a rope-enclosed ring
19 or fenced enclosed cage and are fought in timed rounds;

20 33. "Promote" or "promoting" means producing, staging,
21 sponsoring, organizing or otherwise holding a combative sports event
22 whether or not the event is open to the public;

23 34. "Promoter" means any person or individual, whether a
24 resident or nonresident of Oklahoma, or club or corporation, whether

1 domesticated or not domesticated in Oklahoma, that produces or
2 stages professional contests, amateur mixed martial arts contests,
3 or professional exhibitions conducted within this state and shall
4 include any officer, director, or employees as defined by the
5 Commission;

6 35. "Pugilism" means combative sports or the skill or practice
7 of fighting with the fists;

8 36. "Purse" means the financial guarantee or any other
9 remuneration or thing of value for which a combative sports
10 practitioner participates in a professional combative sports event
11 and shall include the participant's share of any payment received
12 for radio broadcasting, television, including cable television, pay-
13 per-view television, and closed-circuit television, and motion
14 picture rights. "Purse" shall also include gate receipts and any
15 other prizes;

16 37. "Ring official" means any individual who performs an
17 official function during the progress of a combative sports event or
18 amateur mixed martial arts event including but not limited to
19 timekeepers, judges, referees, and attending physicians;

20 38. "Sanctioning permit" means a permit issued by the
21 Commission to promoters who make application for official approval
22 of a professional or amateur combative sports ~~events and amateur~~
23 ~~mixed martial arts events~~ event;

24

1 39. "Sparring" means to engage in a form of combative sport
2 with jabbing or feinting movements, and the exchange of few heavy
3 blows, such as occurs in a practice or exhibition boxing match;

4 40. "Telecast promoter" means any promoter who shows or causes
5 to be shown in this state a closed-circuit telecast of any
6 professional combative sports event conducted in this state.

7 "Telecast promoter" shall not include a cable system operator;

8 41. "Trainer" means an individual who assists, coaches, or
9 instructs any professional combative sports practitioner or amateur
10 mixed martial artist with respect to physical conditioning,
11 strategy, techniques, or preparation for competition, professional
12 combative sports contests, or professional exhibitions; and

13 42. "Vendor" means any individual, firm, organization, club, or
14 corporation that participates in the conduct of a professional
15 combative sports event or amateur mixed martial arts event conducted
16 in this state by offering for sale food or merchandise, including,
17 but not limited to, wearing apparel, alcoholic and nonalcoholic
18 beverages, souvenirs, and programs.

19 B. The Commission may define any term which is not defined in
20 the Oklahoma State Athletic Commission Act.

21 SECTION 2. AMENDATORY 3A O.S. 2021, Section 604.2, is
22 amended to read as follows:

23 Section 604.2. A. The mission of the Oklahoma State Athletic
24 Commission shall be to preserve and protect the health, safety and

1 welfare of combative sports event participants and the general
2 public through the effective regulation of combative sports in the
3 State of Oklahoma, while fostering an environment that expands
4 existing combative sports events and brings new events into the
5 state.

6 B. The Commission shall have the power and duty to:

7 1. Promulgate rules and issue orders necessary to carry out the
8 purposes of the Oklahoma State Athletic Commission Act, and enforce
9 the provisions of said act and the rules promulgated pursuant
10 thereto;

11 2. Assume jurisdiction over all matters relating to the
12 licensing of amateur and professional combative sports
13 practitioners, ~~amateur~~ including, but not limited to, mixed martial
14 artists, ~~amateur~~ kickboxers, professional boxers, corner persons,
15 booking agents, matchmakers, promoters, referees, judges,
16 timekeepers, vendors, physicians, announcers, clubs, and
17 corporations associated with a an amateur or professional combative
18 sports event, ~~amateur~~ including, but not limited to, a kickboxing
19 event ~~or amateur,~~ mixed martial arts event, or professional boxing
20 event related thereto;

21 3. Act to halt the unlicensed promotion of professional
22 combative sports events and seek administrative, criminal, and civil
23 penalties against those engaged in booking, matchmaking, and
24 promoting unsanctioned events;

1 4. Set license and permit fees pursuant to the requirements of
2 the Oklahoma State Athletic Commission Act;

3 ~~4.~~ 5. Conduct investigations into the qualifications of
4 applicants for licensure and registration;

5 ~~5.~~ 6. Conduct investigations and proceedings for alleged
6 violations of the Oklahoma State Athletic Commission Act and order
7 or subpoena the attendance of witnesses, the inspection of records
8 and premises, and the production of relevant books and papers
9 necessary to such investigations and proceedings;

10 ~~6.~~ 7. Develop and administer examinations for applicants for
11 licenses and permits; and

12 ~~7.~~ 8. Make such expenditures as may be necessary in the
13 performance of its duties.

14 C. Any rule promulgated, order made, or action taken prior to
15 July 1, 1999, by the Commissioner of Labor or the Department of
16 Labor pursuant to the provisions of, or rules issued pursuant to,
17 the Oklahoma State Athletic Commission Act shall be considered valid
18 and in effect unless amended, repealed, or rescinded by the
19 Commission.

20 D. Any valid license, permit, certificate, or registration
21 issued prior to July 1, 1999, by the Commissioner of Labor pursuant
22 to the Oklahoma State Athletic Commission Act, or rules promulgated
23 pursuant thereto, shall remain valid and in effect until it expires
24 pursuant to law or unless suspended or revoked by the Commission.

1 Any application for a license, permit, certificate, or registration
2 which is pending on June 30, 1999, is hereby transferred to the
3 Commission.

4 E. All personnel, powers, duties, responsibilities, fund
5 balances, encumbrances, obligations, and property, which shall
6 include records, furniture, and equipment of the Department of Labor
7 relating to the regulation of combative sports, are hereby
8 transferred to the Oklahoma State Athletic Commission.

9 SECTION 3. AMENDATORY 3A O.S. 2021, Section 605, is
10 amended to read as follows:

11 Section 605. A. The Oklahoma State Athletic Commission may
12 employ an administrator to oversee the organization and activities
13 of the Commission and to ensure compliance with rules promulgated by
14 the Commission. The administrator shall perform such other duties
15 as the Commission may prescribe. The salary of the administrator
16 shall be set by the Commission. The position of administrator shall
17 be an unclassified position.

18 B. The Commission may employ an assistant to keep records of
19 all proceedings relating to professional combative sports and
20 amateur mixed martial arts and to preserve all books, documents, and
21 papers belonging to the Commission. The assistant shall perform
22 such other duties as the Commission may prescribe. The Commission
23 may employ such other personnel as necessary, ~~subject to statutory~~
24

1 ~~full-time equivalent (FTE) limits applicable to the State Department~~
2 ~~of Health.~~

3 ~~C. The State Department of Health shall provide administrative~~
4 ~~support for the Commission, including, but not limited to, office~~
5 ~~space, equipment, and furnishings, payroll and employee benefit~~
6 ~~administration and processing, and travel and expense reimbursement,~~
7 ~~and shall manage the Commission's funds at the direction of the~~
8 ~~Commission. The State Department of Health shall be entitled to~~
9 ~~reimbursement for the actual cost of providing said administrative~~
10 ~~support to the Commission from the Oklahoma State Athletic~~
11 ~~Commission Revolving Fund; provided that said reimbursement shall~~
12 ~~not exceed in any year ten percent (10%) of the total revenue~~
13 ~~deposited in the fund in the preceding fiscal year received from~~
14 ~~fees, administrative fines, reimbursements, bond proceeds and sale~~
15 ~~of materials, but not including cash bonds held in trust by the~~
16 ~~Commission. Upon a written directive of expenditure from Commission~~
17 ~~funds signed by a majority of the Commission members or the~~
18 ~~Commission administrator, the State Department of Health shall~~
19 ~~process and make payment for said expenditure from Commission funds~~
20 ~~within fifteen (15) business days of receipt of the written~~
21 ~~directive from the State Department of Health. All other~~
22 ~~Commission directed expenditures shall be processed according to~~
23 ~~State Department of Health policy.~~

1 ~~D. Employees of the Commission shall be considered unclassified~~
2 ~~employees of the State Department of Health only for the purpose of~~
3 ~~administrative support provided by the State Department of Health as~~
4 ~~prescribed in subsection C of this section.~~

5 C. Persons employed by the Commission shall serve at the
6 direction and pleasure of the Commission and shall answer directly
7 to the Commission administrator and the Commission.

8 ~~E.~~ D. The administrator, the assistant, and any other employees
9 of the Commission or any persons related to said employees within
10 the third degree by either consanguinity or affinity shall be
11 prohibited from promoting, sponsoring, or having any pecuniary
12 interest in any professional combative sports event or amateur mixed
13 martial arts event regulated by the Commission with the exception of
14 medical personnel.

15 E. Beginning on the effective date of this act, the Commission
16 shall cease all support from the State Department of Health and
17 shall be deemed to be a separate and distinct agency. All records,
18 property, equipment, assets, monies, financial interests,
19 liabilities, matters pending, and funds of the Commission shall be
20 transferred to the Commission.

21 F. The State Department of Health and the Commission may enter
22 into an agreement for the transfer of personnel from the State
23 Department of Health to the Commission. No employees of the
24 Commission shall be required to accept a lesser grade or salary than

1 presently received. All employees shall retain leave, sick and
2 annual time earned, and any retirement and longevity benefits which
3 have accrued during their tenure with the State Department of
4 Health. The transfer of personnel shall be coordinated with the
5 Office of Management and Enterprise Services.

6 G. The expenses incurred by the Commission as a result of the
7 transfer required by this section shall be paid by the Commission.

8 SECTION 4. AMENDATORY 3A O.S. 2021, Section 606, is
9 amended to read as follows:

10 Section 606. A. The Oklahoma State Athletic Commission is
11 hereby vested with jurisdiction to issue sanctioning permits for all
12 professional and amateur combative sports contests and exhibitions,
13 ~~for all amateur~~ including, but not limited to, mixed martial arts
14 ~~contests and exhibitions and all amateur kickboxing contests and~~
15 ~~exhibitions,~~ professional boxing, and kickboxing held or given
16 within this state and to issue licenses for participants of
17 sanctioned contests and exhibitions.

18 B. 1. ~~No person shall~~ It shall be unlawful to promote, ~~nor~~
19 ~~shall any person or~~ participate in, a professional or amateur
20 combative sports event ~~or an amateur mixed martial arts event or an~~
21 ~~amateur kickboxing event~~ unless the event is sanctioned by the
22 Commission.

23 2. Except as provided in paragraphs 1 and 2 of subsection C of
24 this section, ~~no person shall~~ it shall be unlawful to promote an

1 amateur combative sports event unless the event ~~has been~~ is
2 sanctioned by the Commission.

3 3. Any person violating the provisions of this subsection shall
4 be ~~punishable pursuant to the~~ subject to the administrative and
5 criminal penalty provisions of Section 615 of this title.

6 C. Specifically exempt from the provisions of the Oklahoma
7 State Athletic Commission Act are the amateur combative sports
8 contests or exhibitions conducted or sponsored by:

9 1. Any school, college, or university where the participants
10 are students regularly enrolled in such institutions and the
11 instructors, coaches, and trainers are employees of such
12 institutions. The term "school, college, or university" shall not
13 include a school or other institution whose principal purpose is to
14 furnish instruction in combative sports or sparring;

15 2. Any military installation or branch of the Armed Forces
16 where the participants are employed by the military installation or
17 are members of the branch of the Armed Forces sponsoring the contest
18 or exhibition;

19 3. USA Boxing; and

20 4. The International Olympic Committee.

21 D. The following persons are specifically exempt from the
22 provisions of the Oklahoma State Athletic Commission Act:

23 1. Practitioners and instructors of the martial arts as defined
24 in Section 602 of this title; and

1 2. Instructors of amateur combative sports practitioners if
2 such instructors are not required to be licensed pursuant to other
3 provisions of the Oklahoma State Athletic Commission Act.

4 SECTION 5. AMENDATORY 3A O.S. 2021, Section 616, is
5 amended to read as follows:

6 Section 616. A. There is hereby created in the State Treasury
7 a revolving fund for the Oklahoma State Athletic Commission to be
8 designated the "Oklahoma State Athletic Commission Revolving Fund".
9 The fund shall be a continuing fund, not subject to fiscal year
10 limitations, and shall consist of all monies received from fees,
11 administrative fines, reimbursements, bond proceeds, and sale of
12 materials, and shall include grants and gifts, pursuant to the
13 Oklahoma State Athletic Commission Act. All monies accruing to the
14 credit of said fund are hereby appropriated and may be budgeted and
15 ~~expended by the State Department of Health as directed by the~~
16 Commission for the purpose of implementing the provisions of the
17 Oklahoma State Athletic Commission Act. Expenditures from said fund
18 shall be made upon warrants issued by the State Treasurer against
19 claims filed as prescribed by law with the Director of the Office of
20 Management and Enterprise Services for approval and payment.

21 B. The "Professional Boxing Licensing Revolving Fund" created
22 for the Department of Health is hereby abolished. On July 1, 2008,
23 any unencumbered funds remaining in the Professional Boxing
24 Licensing Revolving Fund shall be transferred to the credit of the

1 Oklahoma State Athletic Commission Revolving Fund. Any unexpended
2 funds remaining in the Professional Boxing Licensing Revolving Fund
3 after November 1, 2008, shall be transferred to the credit of the
4 Oklahoma State Athletic Commission Revolving Fund.

5 SECTION 6. AMENDATORY 3A O.S. 2021, Section 624, is
6 amended to read as follows:

7 Section 624. A. Except as otherwise provided in this section,
8 prior to being issued a license pursuant to this act every
9 participant applicant shall submit a certified copy of results from
10 testing performed by a laboratory certified pursuant to 42 C.F.R.
11 Part 493 verifying that the applicant is not infected with the human
12 immunodeficiency virus (HIV), the hepatitis B virus or the hepatitis
13 C virus. ~~The testing shall be performed no more than~~ Testing shall
14 be conducted within three hundred sixty-five (365) days ~~before the~~
15 ~~application is submitted. A statement from a doctor of osteopathy~~
16 ~~or medical doctor indicating that the applicant has successfully~~
17 ~~completed a full course of vaccinations for hepatitis B may be~~
18 ~~submitted in lieu of the results of testing for hepatitis B before~~
19 the combative sports contest or exhibition the participant applicant
20 is participating in. Except as otherwise provided in this section,
21 an applicant who receives positive results from any of the tests
22 required by this section shall be denied a license for the
23 particular contest.

24

1 B. If a participant must be replaced within twenty-four (24)
2 hours of an event, a promoter may replace the participant that has
3 been pulled with a new participant that has complied with the
4 testing requirements found in subsection A of this section.

5 ~~C. Notwithstanding the requirement for testing stated in~~
6 ~~subsection A of this section, the participant and opponent, ring~~
7 ~~official, and ringside physician may agree, in writing, to waive the~~
8 ~~denial of licensure for failure to timely submit the required~~
9 ~~certified test results, and by such signed written agreement, the~~
10 ~~participant and opponent shall be granted a license to participate~~
11 ~~in their particular contest.~~

12 SECTION 7. This act shall become effective November 1, 2025.

13 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
14 April 10, 2025 - DO PASS
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